

Municipal Liability Risk Brief

Flock Safety ALPR in Crossville, Tennessee

A council-facing fiscal and civil-rights risk assessment from Crossville's 2022 Flock quote, Atlas of Surveillance camera counts, and research databases (updated July 21, 2026). Headline misuse/settlement figures are national or statewide catalogs — **not Crossville incident counts**. Settlement totals mix ALPR and other AI-enforcement vendors; they are cited for liability scale, not as Flock-only payouts.

39 documented ALPR / Flock officer-misuse incidents in the on-site catalog (includes some non-Flock / unconfirmed-Flock ALPR rows — see JSON vendor fields). **NATIONAL — NOT CROSSVILLE**

\$3.68M published wrongful-enforcement settlements in the on-site multi-vendor catalog (\$3,679,500 / 12 cases with settlement fields). **NATIONAL — NOT CROSSVILLE; NOT ALL FLOCK**

2 Tennessee misuse entries in that misuse catalog (Oak Ridge Flock; Shelby Co. ALPR allegation — Flock not confirmed). **STATEWIDE TN — NOT CROSSVILLE**

11 Crossville PD Flock ALPRs (Atlas, Sept. 2025). **CROSSVILLE-SPECIFIC**

Bottom line for Council

Crossville taxpayers — not the camera vendor — carry downside risk when an ALPR misread, unchecked search, or network abuse produces an unconstitutional stop, a privacy scandal, or a records fight. TCA § 55-10-302 limits retention; it does not immunize the City from 42 U.S.C. § 1983 claims.

Exposure channels with public precedents (mostly outside Crossville):

- Wrongful high-risk stops from OCR/hotlist errors — e.g. Gilliam v. Aurora \$1.9M and Denise Green v. San Francisco \$495k (ALPR systems; not Flock-branded cases; cited for liability scale).
- Officer misuse of networked ALPR searches for stalking/personal tracking (catalogued nationally; Tennessee entries include Oak Ridge/Flock and Shelby County ALPR allegation — none are Crossville incidents).
- Records / transparency failures — Everett, WA \$25,000 public-records settlement over withheld Flock records (June 2026), not a wrongful-stop payout.
- Fourth Amendment / program-structure litigation risk (Schmidt v. Norfolk amicus wave; Boulder class action).
- Program expansion without a published Crossville policy, audit log, or efficacy report (as of July 21, 2026, this brief has not found a city-published ALPR search policy or official public camera map).

1. What Crossville currently runs

Vendor quote: Q-00234 — 10 Falcons; \$25,000 recurring; \$3,500 implementation; start 08/26/2022 (non-binding proposal). Atlas of Surveillance: 11 Crossville PD Flock ALPRs as of September 2025. Police Chief / City Manager / Mayor: Jessie Brooks · Valerie Hale · R.J. Crawford.

Gap alert: the 2022 quote describes 10 Falcons; Atlas lists 11 by September 2025 — expansion without a resident-facing explanation of cost, locations, or outcomes. Do not treat \$25k/year as proven pricing for 11 cameras without current invoices.

2. The immunity myth — TCA § 55-10-302

A retention limit is a data-handling rule, not a municipal liability shield. If Crossville deploys ALPR and an unconstitutional seizure or related civil-rights injury follows, federal § 1983 exposure attaches to government actors — with settlement dollars funded by taxpayers.

3. Asks before any renewal

- Public meeting on locations, cost, sharing, and outcomes.
- Written search policy with supervisor approval before plate lookups.
- Public camera map; current contract + sharing list; monthly audit summaries.
- Confirm whether FreeForm / people-description search is enabled.
- Sunset clause before any silent renewal (Q-00234 anniversary window: Aug 26, 2026).

Full sources and case databases: <https://crossvilleprivacy.org/> · Quote PDF and databases in /docs on that site.

Crossville Liability Risk Brief — Flock Safety ALPR · Independent community materials — not affiliated with the City of Crossville.